

Limited-Sources Justification (LSJ)  
For orders or BPAs exceeding the Simplified Acquisition Threshold

**Limited-Sources Justification**

**1. Agency and Contracting Activity.**

The Department of Homeland Security, U.S. Secret Service (USSS), Office of Procurement, proposes to issue a delivery order off a GSA Federal Supply Schedule, on behalf of the Uniformed Division, pursuant to FAR 8.405-6, Limiting Sources.

**2. Nature and/or description of the action being approved.**

USSS intends to limit the Federal Supply Schedule (FSS) contractors solicited to a particular brand name product, or a feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer.

USSS Uniformed Division (UD) Critical Incident Planning and Response Team (CIPR) intends to issue a firm fixed price order on a noncompetitive basis to LDV, Inc. for the acquisition of (1) stock-ready mobile incident command vehicle, customized to meet requirement standards. LDV, Inc. currently does not have any authorized resellers and is the sole manufacturer of LDV Vehicles.

Vendor Information:

LDV, Inc.

180 Industrial Drive

Burlington, WI 53105-2307

The order will be placed under GSA Multi-Award Contract# 47QMCA21D000F. The applicable GSA Special Item Number (SIN) is 3361V – Vocational Vehicles.

**3. Description of Supplies/Services.**

This requirement is to build a Mobile Incident Command Vehicle to support interagency coordination, communication, and command and control at Secret Service protected sites and areas protected by 18 U.S.C. § 1752. These command vehicles will be utilized during major pre-planned events and crisis response to negative man-made and/or natural disasters and are needed to enhance interoperability of protective operations. Having adopted a zero-fail mission criteria agency wide there is an urgency to upgrade or replace existing mobile command vehicle platforms due to the increased operational tempo, potential for civil unrest with the upcoming transition of administrations, and the risk of complex critical incidents that require management tools such as these support vehicles.

Minimum Specifications include the following:

Vehicle: Mechanical and Safety

- Overall length 32 feet or greater and not to exceed 40 feet.
- Diesel engine w/ block heater
- Automatic transmission w/ park pawl and provision for PTO
- Hydraulic anti-lock brake system w/ optional air supply
- Air Suspension

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- Back-up alarm, sensors, and day/night reversing camera
- Three points of entry – driver door, front “passenger” side door, entry door on mid passenger side into body, all with 24-inch electric entry step (\*Note: Passenger “jump” seat will be installed)
- All marking lights shall be LED
- Three compartments; Driver, conference area, communications.
- Emergency lights by Whelen

The required delivery is 120-days after receipt of order.

**4. Authority and supporting rationale.**

The proposed order or BPA will be placed or established under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies. Pursuant to FAR 8.405-6(a)(1)(i)(B), there is only one source capable of providing the supplies required at the level of quality required because the supplies are unique or highly specialized. LDV, Inc. is the sole manufacturer of LDV Vehicles and currently does not have any authorized dealers.

Through informal market research, site tours and a Request for Information (RFI 70US0925R70092664), LDV, Inc. is the only source capable of providing the customized Mobile Incident Command Vehicle within 120-days or sooner from date of award. Market research identified other manufacturers; however, the lead time to manufacture a vehicle with all customizations ranged from 8-13 months. LDV, Inc. has one (1) vehicle on hand for immediate delivery.

In the event this requirement is not solicited from a manufacturer with immediate delivery, CIPR’s mission would be greatly impacted. CIPR provides 24-hour critical incident response, major event planning interagency coordination, and command and control support during protective operations. CIPR accomplishes this mission by deploying a workforce that is equipped, and sufficiently adaptable to efficiently accomplish routine duties while mitigating the negative impact of man-made and/or natural disasters at sites protected by the US Secret Service including but not limited to White House Branch Complex, Vice Presidents Residence and any diplomatic missions within the National Capital Region. The ability to swiftly respond to emerging threats and incidents of national significance while maintaining interoperability with other law enforcement agencies has become essential in the face of ever emerging and evolving threats. CIPR ensures that all protected persons, places, and events receive the most appropriate level of protection, based upon a thorough assessment of associated threats and vulnerabilities, to reduce the risk of harm to the protected. As such, CIPR requires immediate delivery for a Mobile Incident Command Vehicle to ensure public safety.

**5. Determination by the ordering activity contracting officer that the anticipated order represents the best value consistent with FAR 8.404(d).**

The contracting officer has determined that issuing the proposed Delivery Order for LDV Mobile Incident Command Vehicle represents the best value and will result in the lowest overall cost, considering price and administrative costs, to meet the Government’s needs. The General Services Administration (GSA) has already negotiated fair and reasonable price. USSS will review competitor pricing from other FSS with similar products to ensure a fair price. Discounts from the GSA schedule prices will be requested.

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**6. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.**

The results of the recent market research described below indicate other companies' similar product(s) lack the particular/unique feature(s) required and do not meet, or cannot be modified to meet, the needs of USSS.

Market Research was conducted in accordance with FAR Part 10 and HSAM 3010, and the DHS Market Research Guide. See summary of results below:

*FAR 10.002(b)(2)(vii) - Reviewing catalogs and other generally available product literature published by manufacturers, distributors, and dealers or available on-line.* Online searches were performed followed by email exchanges to identify vendors who could provide a ready-made product requiring minimal upgrades. However, LDV was the only vendor stating the vehicle could be delivered within the required timeframe.

*FAR 10.002(b)(2)(i) Contacting knowledgeable individuals in Government and industry regarding market capabilities to meet requirements.* CIPR contacted LDV, Inc. and identified a unit that meets minimum requirements with minor upgrades. LDV, Inc. confirmed an existing product could be upgraded and in place within 120-days.

*FAR 10.002(b)(2)(iii) Publishing formal requests for information in appropriate technical or scientific journals or business publications.* RFI 70US0925R70092664 was published from 1/27/25 to 2/8/25. Responses were received from multiple vendors via email, expressing interest in the requirement or offering solutions. However, of the responses LDV, Inc was the only vendor who could meet the requested lead time.

**7. Any other facts supporting the limited-sources justification.**

In the event LDV, Inc. is not selected, it will lengthen the lead time to receive a mobile command vehicle. RFI and email exchanges with various vendors revealed that large specialty law enforcement vehicles are not commonly stocked, but made-to-order, requiring at minimum, 8 to 13 months for delivery. Furthermore, the vehicle LDV, Inc. has on hand, may be sold prior to an award being issued if solicited.

**8. A statement of actions, if any, the agency may take to remove or overcome any barriers that led to restricted consideration before any subsequent acquisition for the supplies or services is made.**

The Government intends to procure additional Mobile Incident Command Vehicles in the near future. This will allow the Government to seek competition in future acquisitions for the same type of products, thus eliminating the barriers to competition.

**9. USSS intends to post this justification with the solicitation on GSA's e-Buy site in accordance with FAR 8.405-6(b)(3)(i)(B).**